

CHAPTER – 2

LIABILITY BASED ON TORT

DOCTRINE OF STRICT LIABILITY

In some cases, a person is liable for the harm caused to another even though there is no negligence on his part and he never intended such a harm to come to the other

person. In such cases, even the defence of inevitable accident is also not a valid defence. This is known as 'principle of strict liability'. This principle was laid down in the famous case 'Rylands vs Fletcher'.

CASE LAW: RYLANDS VS FLETCHER

FACTS: 'A' the owner of a mill, employed a contractor to construct a reservoir over his land to provide water to his mill. While digging and constructing the reservoir, the contractor failed to notice some disused shafts under the site of the reservoir and as such did not block them up. Shortly after the water was filled in the reservoir, it broke through some of the shafts and flooded B's (the plaintiff's) coalmines on the adjoining land.

HELD: A was liable in respect of the damage caused to B even though the damage was caused not due to the negligence of A, but due to the negligence of the independent contractor.

EXCEPTIONS

- 1. Act of God:** If the dangerous thing escapes due to unforeseen and supernatural forces without any human intervention, the defence of Act of God can be pleaded.
- 2. Consent of the Plaintiff:** The rule of law, 'where there is consent, there is no injury' is applicable where the plaintiff has consented to the accumulation of the dangerous thing on the defendant's land, he cannot sue if it escapes and causes some damage.
- 3. Plaintiff's Own Fault:** Where the thing escapes due to plaintiff, own default and causes damage, the rule in Rylands vs Fletcher does not apply.
- 4. Wrongful Act of Third Party:** If the harm caused is due to the act of a stranger (who is in no way under the control of the defendant), the defendant is not liable under the rule.

DOCTRINE OF ABSOLUTE LIABILITY

The doctrine of absolute liability is a creation of the Supreme Court in preference to the rule of strict liability down Rylands vs Fletcher. The highlight of the rule of absolute liability is that it is not subject to any of the exceptions discussed under the rule of strict liability. This path breaking decision was made by the Supreme Court following two major gas leaks, namely, the escape of methyl isocyanate from the Union Carbide plant (Bhopal Gas Tragedy) and the leakage of oleum gas from one of the units of Shriram Foods and Fertilizers Industries (M.C. Mehta vs Union of India). As the first case had wreaked havoc on thousands of innocent lives, the Supreme Court feared that industries dealing with hazardous substances would escape the liability for damage caused by leakage of deadly gases by pleading some exception under the doctrine of strict liability. Hence, the courts in India are in favor of applying the rule of doctrine of absolute liability instead of doctrine of strict liability.

CASE LAW: M.C Mehta & Others v/s Union of India

Facts – There was escape of Oleum gas from one of the Units of Shriram Food & Fertilizer Industries on 4th and 6th December 1985. The Delhi Legal Aid and Advice Board and the Delhi Bar Association filed applications for award of compensation to the persons who had suffered harm on account of escape of oleum gas.

Held- The rule in Rylands v/s Fletcher was evolved in the year 1869 and it cannot be followed in a modern industrial society with highly developed scientific knowledge and technology when hazardous or inherently dangerous Industries are necessary to carry as part of the development programme.

DIFFERENCE BETWEEN STRICT AND ABSOLUTE LIABILITY

Basis	Strict liability	Absolute Liability
Who is Liable	Anyone who keeps, bring or collect dangerous things on his land	Enterprise indulged in hazardous activity
Escape	Required	Not Required
Exceptions	Allowed	Not Allowed
Measures of compensation	No such measures; Liable for all natural consequences	Economic capacity of tortfeasor
Propounder	J. Blackbourn	J. Bhagwati
Case	Ryland v/s Fletcher	M C Mehta v/s UOI